2. 9:00 AM CASE NUMBER: C25-01525
CASE NAME: MARAT VALIULLIN VS. DAVID STALLWORTH
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
<u>*TENTATIVE RULING:*</u>
This Case Management Conference trails the hearing for Line 20. If Line 20 is uncontested, no appearance is required and this CMC will be continued to December 22, 2026 at 8:30 a.m.

3. 9:00 AM CASE NUMBER: C25-03334
CASE NAME: DAVID CHEW VS. VETERINARY EMERGENCY GROUP,
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
<u>*TENTATIVE RULING:*</u>
This Case Management Conference trails the hearing for Lines 9 and 10. If Lines 9 and 10 are uncontested, no appearance is required and this CMC will be continued to December 22, 2026 at 8:30 a.m.

4. 9:00 AM CASE NUMBER: MSC22-00021
CASE NAME: O'CAIN, JR. VS SHIELDS NURSING CENTER, INC.
***FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL MOTION FOR SUMMARY JUDGMENT**
FILED BY:
<u>*TENTATIVE RULING:*</u>
This Case Management Conference trails the hearing for Line 16. If Line 16 is uncontested, no appearance is required and this CMC will be continued to September 29, 2026 at 8:30 a.m.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00916
CASE NAME: VANESSA ALLEN VS. ACES 2020 I, LLC
***HEARING ON MOTION IN RE: ATTORNEY FEES**
FILED BY: ALLEN, VANESSA MARIE
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Plaintiffs Vanessa Allen, Annalise Corona, Sarah Marie Hooker, and Kaleigh Walker's ("Plaintiffs") Motion for Attorney's Fees and costs in the amount of $151,242.75 against Defendant against Defendant ACES 2020 I LLC ("Defendant") is **<u>granted</u>** in the **<u>reduced</u>** by fifty percent (50%) to the amount of $75,621.38, plus costs of $9,906.50, for a total award of $85,527.88

<u>Background</u>

Plaintiffs seek attorney's fees and costs as prevailing parties against Defendant pursuant to Code of Civil Procedure Section 1021.5 and Labor Code Sections 218.5, 226(e), 1194, 2699(g)(1), and 2802. Plaintiffs filed this wage-and-hour action on April 22, 2023, alleging violations of minimum wage, overtime, meal and rest period, wage statement, and expense reimbursement laws, along with UCL and PAGA claims.

On May 15, 2025, Plaintiffs accepted Defendant's Code of Civil Procedure Section 998 settlement offers, rendering Plaintiffs the prevailing party. Under the settlement terms, Defendant agreed to pay reasonable attorney's fees and costs incurred through March 26, 2025, either by agreement or court award. Plaintiffs now seek $151,242.75 in fees (230.65 attorney hours, 48.4 paralegal hours through March 26, 2025, plus 16 hours drafting this motion) at rates ranging from $495 to $850 per hour, plus $9,906.50 in costs, totaling $161,149.25. Plaintiffs disclaim any multiplier.

Defendant opposes, arguing the requested fees are grossly disproportionate to the $34,790 net recovery for four individuals (less than 6% of calculated exposure). Defendant contends Plaintiffs achieved limited success: their PAGA claims were extinguished by *res judicata* following approval of the prior *Kaur* Action settlement ($1,715,000), and Plaintiffs dismissed their PAGA claims without prejudice without litigating representative claims. Defendant further argues counsel performed minimal work—filing no motions, serving only duplicated discovery, and making only routine case management appearances (missing one). Defendant challenges billing records as unreliable, citing entries for different matters, double-billed costs, block billing, and vague entries. Defendant specifically identifies allegedly excessive time: 5.9 hours for a routine Labor Code Section 1198.5 personnel file demand, 24 hours (among four attorneys) to draft a complaint copying the *Kaur* complaint verbatim (including typographical errors), and 11 hours on opt-out tasks Defendant deems unnecessary.

Defendant's request for judicial notice is granted without opposition, subject to limitations. (Evid. Code §§ 452, 453; *Linda Vista Village San Diego Homeowner's Association, Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 ["Judicial notice may be taken of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face." see also *People v. Franklin* (2016) 63 Cal.4th 261, 280 ["A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments."] [quoting *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914].)

ANALYSES

California wage-and-hour statutes contain fee-shifting provisions authorizing reasonable attorney's fees to prevailing employees to vindicate public policies and make claimants whole. Labor Code Sections 218.5 and 1194(a) provide fee entitlements for minimum wage and overtime violations (*Cruz v. Fusion Buffet, Inc.* (2020) 57 Cal.App.5th 221, 230, 245). Section 218.5 similarly covers meal and rest period premiums (*Betancourt v. OS Restaurant Services, LLC* (2022) 83 Cal.App.5th 132, 140). Section 226(e) authorizes fees for wage statement violations; Section 2802(c) for expense reimbursement; and Section 2699(g)(1) for PAGA claims. Where UCL claims under Business and Professions Code Section 17200 et seq. are predicated on wage violations with independent fee entitlements, fees are recoverable.

Courts apply the *Lodestar* method: hours reasonably expended multiplied by reasonable hourly rates prevailing in the community (*Marshall v. Webster* (2020) 54 Cal.App.5th 275, 285, citing *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321). The California Supreme Court approved this method as "the only way of approaching the problem that can claim objectivity" (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131, citing Serrano v. Priest (1977) 20 Cal.3d 25, 48, fn. 23). The *Lodestar* formula may be adjusted by a multiplier reflecting contingent risk, results achieved, complexity, and skill. The relevant community is where the court is located (*Marshall* , at p. 285, citing *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71)—here, the San Francisco Bay Area. The Court has wide discretion to adjust attorney's fees requested based on the *Lodestar* factors.

After considering the position of the Parties in light of the applicable statutory and decisional authority, the Court finds good cause to grant attorney's fees with adjustments. Good cause appearing, the Court makes the following orders.

RULING

1. The Court finds Plaintiffs are prevailing parties entitled to fees under the applicable statutes. However, the Court finds the requested lodestar of $151,242.75 are unreasonable considering the limited success achieved, minimal litigation activity, and billing deficiencies identified by Defendant.
2. While Plaintiffs obtained a favorable settlement on individual claims, they did not prevail on any PAGA claims, which were dismissed without prejudice after being extinguished by res judicata. This significantly reduces the scope of the "success" achieved. The Court also finds merit in Defendant's objections to billing practices: the 24 hours (among four attorneys) to draft a complaint largely duplicative of the Kaur complaint, 5.9 hours for a routine personnel file request, and 11 hours for opt-out tasks represent inefficient and duplicative billing that would not be compensable at full rates.
3. The Court finds that the billable rates of $495–$850 per hour are reasonable for the San Francisco Bay Area market but finds the hours claimed excessive by approximately 50%. Accordingly, the Court reduces the *Lodestar* from $151,242.75 to $75,621.38 to account for limited success on PAGA claims, block billing, vague entries, and inefficient duplication of work. The Court awards costs of $9,906.50 as requested. The total award is $85,527.88 from Defendant. Such fees and costs are due no later than thirty (30) days from Notice of Entry of this Order.
4. Plaintiffs' attorneys are ordered to e-file a proposed order conforming to this ruling, attaching a copy of this ruling, no later than five (5) court days from the date of this hearing.

6. 9:00 AM CASE NUMBER: C23-02821
CASE NAME: LESLEY HOWARD VS. LIBERTY ASSOCIATES GROUP, LLC
***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:*
Summary

The Motion for Final Approval of this Class Action and PAGA Settlement is **granted** and approved as